5. Property Regime of Unions without Marriage

Applicability

- Void marriages except for void marriage under Art 40
- Union or cohabitation of man and woman, who are living together as husband and wife, but without the benefit of marriage

Applicability - Void Marriages

- **Art 147 (no legal impediment)**
  - Marriages solemnized by persons without authority
  - Marriages celebrated without marriage license
  - Marriages - mistake as to identity
  - Subsequent marriage - failure to comply under Art 52
  - Void marriages under Art 36

- **Art 148 (with legal impediment)**
  - Marriages where one party is below 18
  - Bigamous or polygamous marriage
  - Incestuous marriage
  - Marriage which are prohibited by reason of public policy

- **Applicability - Union without marriage**
  - Art 147 (no legal impediment)
    - Capacitated to marry each other
    - Live exclusively with each other as husband and wife
    - The union is without the benefit of marriage
  - Art 148 (with legal impediment)
    - Applicable to same sex marriage (Read Josef v. Ursua, G.R. No. 267469, February 5, 2025)

b) Void Marriages or Live-In Relationships Art. 147 Co-Ownership, Concept

- ***Paterno v. Paterno, 8 January 2020***
- ***Diño v. Diño, 19 January 2011***
- ***BERNARD B. BENASA VS. PRESENTACION R. MAHOR, G.R. No. 236659 August 31, 2022,***
- ***Josef v. Ursua, GR No. 267469, February 5, 2025***

- **Property Regime under Art 147**
  - wages and salaries shall be owned by them in equal shares
  - property acquired by both of them through their work or industry shall be governed by the rules on co-ownership
  - **Rules:**
    - properties are obtained by joint efforts, work, or industry if there is no proof to the contrary - EQUAL SHARES
    - care and maintenance of the family and of the household shall be considered as a contribution
    - No encumbrance or disposition of the share in the property without the consent of the other

- Disposition may be done after the termination of cohabitation
- Spouse in bad faith – shares will be forfeited in favor of common children
    - Waiver by common children or descendants - vacant share will go to the surviving descendants
    - No descendants - share will belong to the innocent party

c) Bigamous, Adulterous, Etc. Relationships Art. 148 Actual Joint Contribution, Concept

- ***Benasa v. Mahor, GR 236659, August 31, 2022***
- ***Bangayan v. Bangayan, 3 July 2013***

Property Regime under Art 148

- properties acquired by both of the parties through their actual joint contribution of money, property, or industry shall be owned by them in common in proportion to their respective contributions
- Rules:
    - Contributions and shares (property, joint deposits, evidence of credit) are presumed equal if there is no proof to the contrary
    - If party/parties has an existing valid marriage - share will belong to the community or partnership property
    - Party in bad faith is not validly married or both parties are in bad faith - shares will be forfeited in favor of common children
        - Waiver by common children or descendants - vacant share will go to the surviving descendants
        - No descendants - share will belong to the innocent party